

Crl. Misc. No.50989-M of 2024

Addl. Sessions Judge, etc.

23.09.2025 Barrister Muhammad Sajjad Maitla, for the petitioner.
Mr. Nisar Ahmad Virk, Deputy Prosecutor General for the State.
M/s Muhammad Arbaz Khan and M. Barjees Iftikhar Bhatti, Advocates for respondents No.4 to 7.

By means of instant petition preferred under Section: 561-A Cr.P.C, Zainab Bibi (petitioner) has impugned the *vires* of order dated: 07.05.2024 passed by learned Judicial Magistrate Section-30, Depalpur, whereby application filed by the petitioner seeking disinterment of corpse/dead-body of her daughter namely Robina Bibi (deceased) and conducting postmortem examination over her dead-body was dismissed as well as order dated: 29.05.2024 passed by learned Addl. Sessions Judge, Depalpur, whereby revision petition filed by petitioner against above mentioned order has also been dismissed.

2. Brief facts of the case necessary for disposal of instant petition, are that Zainab Bibi (petitioner) filed application for disinterment of dead body of her daughter namely Robina Bibi (deceased) as well as post-mortem examination over her dead body before learned Magistrate Section-30, Police Station: Mandi Ahmad Abad, District Okara while mentioning therein that Muhammad Aamer, Sakhi Muhammad, Nusrat Bibi and Shoukat Ali (now arrayed as respondent No.4 to 7) administered poisonous drugs to her aforementioned daughter, who was pregnant, for abortion due to which her condition deteriorated, Robina Bibi (deceased) was also tortured by the aforementioned respondents, she ultimately died in hospital, however, said application was dismissed vide impugned order dated 07.05.2024 passed by learned Magistrate Section-30, Depalpur; present petitioner filed revision petition against aforementioned order before learned Addl. Sessions Judge,

Depalpur, District Okara which was also dismissed by him vide order dated 29.05.2024.

3. While opening his arguments, learned counsel for the petitioner submits that petitioner being mother/legal heir of Robina Bibi (deceased) has every right to know her cause of death and for said purpose exhumation of dead body of the deceased and thereafter conducting postmortem examination over her dead body is necessary; adds that impugned orders (mentioned above) are against law as well as facts of the case, therefore, same are liable to be set aside and finally prayed for issuance of direction for exhumation of dead body of the deceased as well as postmortem examination over her dead body while accepting instant petition.

4. On the other hand, learned counsel appearing on behalf of respondents No.4 to 7 while opposing this petition submits that there is no reason to have exhumation of the dead body or postmortem examination over the same; further adds that both the impugned concurrent orders have been passed quite in accordance with law and finally prayed for dismissal of instant petition.

5. Learned Deputy Prosecutor General for State submits that both the impugned orders (mentioned above) are against the law on the subject as well as facts of the case, therefore, same are not sustainable; adds that since Zainab Bibi (petitioner) is mother of Robina Bibi (deceased of the case), therefore, her application for exhumation of dead body as well as postmortem examination over the dead body is liable to be accepted by setting aside impugned orders.

6. Arguments advanced pro and contra have been heard and record available perused.

7. It is not denied by any party that Robina Bibi (deceased) was daughter of Zainab Bibi (petitioner). By now, it is well settled that the legal heirs of the deceased have every right to get the suspicion regarding cause of death removed through exhumation of the dead body and thereafter postmortem examination over the same and in this regard, case of “AMEER AFZAL BAIG versus AHSAN ULLAH BAIG and

others” (2006 SCMR 1468) can be advantageously referred, relevant portion from page No.1470 of para No.3 is hereby reproduced:-

“In the circumstances of the present case at least the legal heirs had a right to get the suspicion removed, more particularly, when the exhumation by itself could never lead to the involvement of some one unless the post-mortem is conducted and the report is positive. When report is positive, the persons involved certainly require to be proceeded against.”

There is no second cavil to this proposition that disinterment of dead body is not meant to know circumstances of the occurrence rather it is done to ascertain cause of death of the deceased and it is the legitimate right of every person to know the cause of death of his beloved one because grief of unnatural and sudden death is much higher than the sorrow/pain of natural death. The question that whether death of a deceased person has occurred in natural way or otherwise could only be resolved after conducting autopsy; in this regard, case of **“Mrs. ALIA TAREEN, MANAGING DIRECTOR, PAKISTAN GENERAL HOSPITAL, QUETTA and others versus AMANULLAH KHAN, ADVOCATE and 3 others” (PLD 2005 Supreme Court 99)** can be safely referred, relevant portion from page No.117 is reproduced:-

“37. Cause of death can only be gathered safely through a postmortem examination which was never conducted in the instant case.-----.”

It goes without saying that exhumation of dead body and thereafter post mortem examination over the same would even save interest of the proposed accused persons because if post mortem examination report negates unnatural death, then it would exonerate them forever and in this regard case of **“GHULAM FAREED versus ADDITIONAL SESSIONS JUDGE, D.G. Khan and 4 others” (2010 P Cr.L.J 4)** can be advantageously referred; relevant para Nos.11 & 12 are hereby reproduced:-

“11. In the present case, respondent No.4, who moved an application for disinterment of the dead body of Mst. Naseem Bibi, is her real brother and he has every right to know the cause of death. If he and his other close relatives suspect that death of Mst. Naseem Bibi is not on account of natural causes or by biting of snake and are interested in disinterment of her body in order to know the real cause of her death. To get the body exhumed for this purpose is their right. Reliance can be placed on 2007 PLD Lah. 176 and 1991 PCr.LJ 806. 12. It may be noted that even on simple ground of suspicion, an application for disinterment can be moved. This is more so because a

person should have a right to ascertain the real cause of death. In Ameer Afzal Baig v. Ahsan Ullah Baig (supra), on the ground of mere suspicion, the order of disinterment passed by this Court was upheld by Honourable Supreme Court of Pakistan. It is, therefore, in the interest of justice that order of exhumation of dead body of the deceased is passed and in such like cases no interference by this Court is called for. Under the facts and circumstances of the present case, a serious allegation of murder has been levelled against the present petitioner, suspecting him of the murder of the deceased. A fact which has been vehemently denied by the petitioner himself. It would, therefore, be in his interest also that the body of the deceased is exhumed so as to exonerate him from this allegation forever.”

Furthermore, case of **“Mst. FOZIA SHABNAM versus ADDITIONAL SESSIONS JUDGE, MULTAN and 8 others”** (PLD 2016 Lahore 518) can also be advantageously referred on the subject.

Needless to add that there can be no estoppel against the statute and there is no time limit for disinterment of dead body and thereafter conducting postmortem examination over the same. It is worth mentioning here that august Supreme Court of Pakistan in the case of **“FARYAD ALI versus THE STATE”** (2008 SCMR 1086) has observed as follows:-

“13. Coming to the contention of the learned Deputy Prosecutor General that the re-examination of the dead body conducted by the Special Medical Board after about 10 months of the burial, suffice it to answer that the medical jurisprudence has not provided any time limit for exhumation/disinterment of the dead body in India and England while in France the period is limited to 10 years and 30 years in Germany. Reference is made to Modi’s Medical Jurisprudence and Toxicology (Chapter IV Page 90).”

If dead body of any deceased person has been buried without carrying out autopsy and suspicion has been raised qua said death, then allowing disinterment/exhumation of dead body for the purpose of autopsy is a reasonable approach and even no time limit has been provided by the statute/medical jurisprudence, in this regard.

8. Admittedly petitioner is mother/legal heir of the deceased who wants exhumation and autopsy of dead body of her daughter, therefore, she has every right to know cause of death of her deceased daughter. Even otherwise, when confronted, learned counsel appearing on behalf of respondents No.4 to 7 remained unable to explain that if disinterment of the dead body of the deceased is allowed, what prejudice would accrue to the rights of aforesaid respondents.

9. In view of what has been discussed above, this Court is of the firm view that aforementioned impugned orders are not sustainable in the eyes of law, therefore, same are set aside. Since disinterment of dead body of Robina Bibi (deceased) as well as autopsy over her dead body will secure ends of justice, therefore, application filed by petitioner for “disinterment of corpse of her daughter namely Robina Bibi and thereafter conducting postmortem examination on the same”, is allowed. Learned Magistrate Section-30, Depalpur, District Okara and Medical Superintendent DHQ Okara will make arrangements for disinterment of corpse of Robina Bibi (deceased daughter of the petitioner) within three weeks after receipt of attested copy of this order and thereafter immediately conducting postmortem examination over the same. District Police Officer, Okara will ensure provision of police assistance as and when required by learned Magistrate as well as Medical Superintendent, DHQ Hospital, Okara for compliance of this order. Instant petition stands **accepted**.

(Farooq Haider)
Judge

APPROVED FOR REPORTING

(Farooq Haider)
Judge

This order has been
dictated, pronounced,
prepared and signed
on 23.09.2025.
Javaid.S.